

HEADNOTE

“1. When deciding an application to grant protection for the allegedly confidential information, the court has to weigh the right of a party to have unlimited access to the documents contained in the file, which guarantees its fundamental right to be heard, against the interest of the opposing party to have its confidential information protected.

2. A party seeking protection for confidential information has, in a first step, to put forward sufficiently substantiated arguments, why it believes the information concerned is to be protected. It is therefore not enough to have resort to general circumstances such as there being competition between the parties to the dispute. The court has to be put in a position to understand, why the applicant believes that the concrete information to be protected is vulnerable and confidential. It is therefore necessary to substantiate with regard to each redacted part of the written submissions, why this explicit part of the submission amounts to confidential information.

3. Once adequate explanation in that regard has been received, it is then for the court to decide, which extent of certainty has to be reached for the court to believe that the applicant's allegations are true. The necessary level of persuasion that the information is confidential in nature may differ having due regard to the substance matter of the dispute.

4. In a further step, the court has to strike a balance between the adequate level of protection of said confidential information and the right of the claimant to have sufficient access to the information in order to exercise its right to be heard. In this context, R. 262A.6 RoP establishes with all desirable clarity as a ground rule of paramount importance that at least one natural person from each party and the respective lawyers or other representatives are to be granted access in order to ensure a fair trial. When deciding upon the level of restriction, again the circumstances of the case are to be taken into consideration. Whereas in some cases a restriction may be more important to safeguard the confidential information concerned, in other cases the right to full access to the files of a party trumps the interest of protection.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 3 594 009 B1

Lithographic printing plate original
plate, and method for producing
lithographic printing plate

KEYWORDS

Protection of confidential information

R. 262A RoP

confidential information

confidentiality club

Rule 262A Protection of Confidential Information**SUMMARY**

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a lithographic printing plate original plate and method for producing lithographic printing plate. According to the headnotes of the decision, courts must balance a party's right to access documents against the opposing party's interest in protecting confidential information. When seeking confidentiality protection, a party must provide detailed, substantiated reasons specific to each piece of information rather than relying on general competitive concerns. The court then determines the appropriate level of certainty required to accept the applicant's confidentiality claims, which may vary depending on the nature of the dispute. Finally, the court must balance adequate protection of confidential information against the claimant's right to sufficient access to the file to exercise its right to be heard, with the procedural rules establishing that at least one natural person per party and their legal representatives must have access to ensure a fair trial.